

CV-24-008226 MEDINA, JOHN, Jr vs BAY CITIES PAVING & GRADING INC - Cross-Defendant Destination Anywhere, INC.'S Demurrer to Defendant/Cross Complainant Bay Cities Paving & Grading, INC.'S Cross-Complaint – HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The Court is strongly disinclined to permit the cross-complaint to go forward. The Court is inclined to strike the cross-complaint rather than rule on the demurrer for failure to adhere to Code Civ. Proc. 428.50. I do not appear to have a record of my granting permission for the cross-complaint. The Court does not believe it is required to take judicial notice of filings in the instant case to consider them. Bay Cities Paving does not address at all the violation of Code Civ. Proc. section 428.50. If the Court and Medina are correct about this failure, this action should not have been filed by the clerk's office and it appears any argument otherwise has been forfeited. As to the merits, the cross-complaint fails at the first turn with the opposition stating various theories of liability unsupported by the complaint. No specificity of responsibility for damages is made. The Court disbelieves its prior demurrer is binding on this action – Lucido v. Superior Court (1990) 51 Cal.3d 335, 341 seems entirely unpersuasive for that theory

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Bay Cities Paving does not address at all the violation of Code Civ. Proc. section 428.50. If the Court and Medina are correct about this failure, this action should not have been filed by the clerk's office and it appears any argument otherwise has been forfeited.

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The Court disbelieves its prior demurrer is binding on this action – Lucido v. Superior Court (1990) 51 Cal.3d 335, 341 seems entirely unpersuasive for that theory - but issues of workers compensation exclusivity are not obviously abated by this pleading. Bay Cities suggests that this is a coverage and representation issue at its heart, which may well be accurate, but does not save this cross-complaint. Further, Bay Cities declines to address Labor Code section 3864.

Unless there is a good reason not to strike the cross-complaint, the Court does not believe a ruling on the express indemnity clause is ripe.